



Notification Waiver Determination

CRH - Axius Water

Acquisition	CRH Plc (CRH), via CRH Americas Products, Inc. (CRH Americas) and Oldcastle Infrastructure, Inc. (Oldcastle), applied for a notification waiver in respect of its proposed acquisition of 100% of the partnership interests and voting rights in Axius Water Parent LP (Axius Water), as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	11 May 2026

Parties to the Acquisition	The ultimate acquirer, CRH, is a global supplier of building materials and infrastructure products headquartered in Ireland and listed on the New York Stock Exchange. CRH Americas and Oldcastle would have sole control of Axius Water. CRH Americas is an intermediate holding company which does not directly manufacture or supply goods or services. Oldcastle is a US-based supplier of engineered concrete products related to water, communications, energy and transportation infrastructure with a focus on sustainability. It has no presence in Australia. CTC Precast Pty Ltd (Civilmart), which is indirectly owned by CRH, is a supplier of precast concrete infrastructure products in Australia, including stormwater and drainage components, stormwater quality improvement devices, sewer chambers and pump stations, and domestic aerated wastewater treatment systems. Hydro International is a CRH subsidiary that supplies water filtration products, including sludge screens and stormwater separators and filters, into Australia The target, Axius Water, is a US based supplier of nutrient removal solutions and process-intensive treatment for municipal and industrial waste-water and water treatment processes via brands including Aero-Mod, atac, EDI, Eosi, MITAwt, Napier-Reid, Nexom and triplepoint. Axius Water has minimal export sales into Australia and no operations, assets, employees or subsidiaries in Australia. CRH and its controlled portfolio companies, and Axius Water, both supply wastewater treatment solutions in Australia.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and

	had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: a. Axius Water has a small presence in Australia b. while there may be a small horizontal or complementary relationship between the products and services supplied by CRH (including its controlled portfolio companies) and Axius Water, there are alternative suppliers of these products and services in Australia. In these circumstances, the ACCC does not consider it necessary to reach a concluded view on the likelihood of the notification thresholds being met. Given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act